

M/S G.B.A. Steels & Metals Pvt. Ltd. v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 3 October 2017 · Writ-C No. 39866 of 2014 · **Writ dismissed; clause 4.20 additional-security challenge fails.**

HEADNOTE

A writ challenging Dakshinanchal's 17 July 2014 demand for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005 is dismissed. Counsel agreed the controversy had been decided against the consumer in Dev Prayag Paper Mill (21 March 2017), which found no merit in a challenge to clause 4.20. The 4 August 2014 interim restraint is vacated.

FACTUAL SUMMARY

The petitioner, an industrial consumer, challenged Dakshinanchal Vidyut Vitran Nigam Ltd.'s notice dated 17 July 2014 demanding additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. On 4 August 2014 a Division Bench connected the petition with Writ Petition (C) No. 51844 of 2009 and, following an interim order in Supreme Ceramics, restrained the demand. At final hearing both sides accepted that an identical challenge to clause 4.20 had already been rejected in Dev Prayag Paper Mill on 21 March 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

A writ challenging a demand for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005 is dismissed where that challenge was held to have no merit in Dev Prayag Paper Mill; any interim restraint on the demand stands vacated. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/S Dev Prayag Paper Mill (Pvt.) v. State of U.P.</i> Writ-C No. 30898 of 2016 (21 March 2017)			1	Referred
<i>M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> Writ Petition No. 51844 of 2009 (order dated 7.10.2009)			1	Referred